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# Los Angeles Times

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## Well-Intentioned but Impractical

Proposition 10 on the Nov. 4 ballot has a worthwhile intention. It aims at reducing the exposure of non-smokers to tobacco smoke that, as recent medical evidence shows, may even at secondhand be harmful to health. It would do this by requiring separate smoking and non-smoking sections in every enclosed public place and place of employment. Where such separation is not feasible, it would require that an entire enclosed area be posted to prohibit smoking.

We have no quarrel with the purpose of Proposition 10. We believe, however, that the measure presents serious problems, and that these outweigh the benefits it seeks to achieve. Proposition 10 would quite clearly present a direct and possibly disastrous economic hardship to certain small business establishments. And it would add, perhaps greatly, to the demand on already overburdened law enforcement agencies. For these reasons we urge a "no" vote on Proposition 10.

Because of limited space, a great many small businesses would find it impractical or impossible to create separate smoking and no-smoking areas. In these cases, under the proposed law, the whole of a cafe, shoe repair shop, boutique or whatever would have to prohibit smoking on the premises. That requirement cannot be considered an equal application of the law, least of all if it results in a loss of patronage because of the smoking ban.

The enforcement mechanism for Proposition 10 is highly questionable. The Department of Health Services would be given exclusive authority to write implementing regulations for the law. The public that is being asked to vote the measure into being would have no say in the creation of that code. At the same time, Proposition 10 requires police to deal with reported violations of the smoking ban by writing citations, and provides a \$15 fine for each infraction. Surely the police have more important things to do with their limited resources than respond to calls about alleged smoking ban violations.

In many restaurants and work places separate smoking and non-smoking areas have been established. In other places—medical waiting rooms, for example—smoking is discouraged and compliance with that request seems good. We are all in favor of voluntarily extending protections for non-smokers, where extensions are practical.

Proposition 10, however, fails on the basis of practicality, even as it promises to create new problems and burdens by adding to the police powers of the state. In seeking to advance the rights of some, it would inevitably infringe the rights of others. That makes it bad law, and that is why we urge a "no" vote on Proposition 10.

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